



THE NATIONAL UNIVERSITY OF PAKISTAN ACT, 2023



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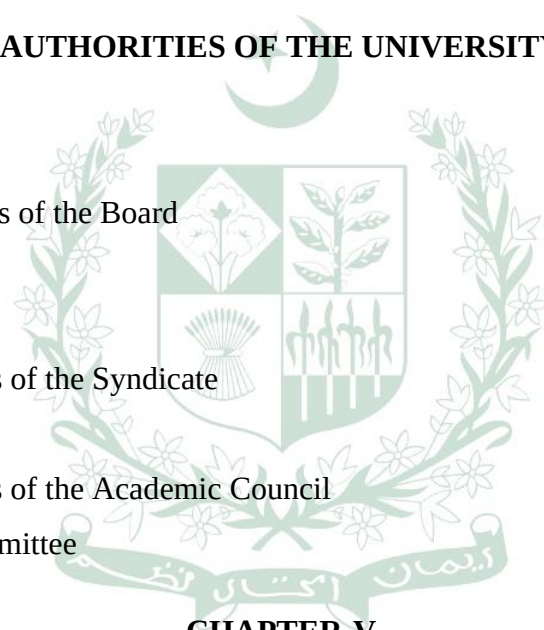
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THE NATIONAL UNIVERSITY OF PAKISTAN ACT, 2023

Act no. XV OF 2023

[18th April, 2023]

AN

ACT

to establish the national University of Pakistan

WHEREAS, it is expedient to provide for establishment of the National University of Pakistan and for matters connected therewith and ancillary thereto;

It is hereby enacted as follows:

CHAPTER-I

PRELIMINARY

1. Short title and commencement.—(1) This Act shall be called the National University of Pakistan Act, 2023.

(2) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

- (i) “Academic Council” means the Academic Council of the University;
- (ii) “affiliated college” means an educational institute affiliated with the University but not maintained or administered by it;
- (iii) “Authority” means any of the Authorities of the University specified in section 24;
- (iv) “Board” means the Board of Governors of the University specified in section 25;
- (v) “campus” means a campus of the University;
- (vi) “Chancellor” means the Chancellor of the University;
- (vii) “Chairman” means the Chairman of the Board;
- (viii) “Chairperson” means the head of an academic department;
- (ix) “college” means a constituent college or an affiliated college;
- (x) “Commission” means the Higher Education Commission established under the Higher Education Commission Ordinance, 2002 (LIII of 2002);

- (xi) “constituent college” means an educational institute, by whatever name described, maintained and administered by the University;
- (xii) “Controller of Examinations” means Controller of Examinations of the University;
- (xiii) “Dean” means the head of a faculty or the head of an academic body granted the status of a faculty by this Act or by the statutes or regulations;
- (xiv) “department” means a teaching department maintained and administered by the University in the prescribed manner;
- (xv) “Director” means the head of department or institute or by whatever name called established and maintained by the University by statutes or regulations;
- (xvi) “Director General FGEI (C/G) Directorate” means head of Federal Government Educational Institutions (Cantonments and Garrisons) Directorate or by whatever name called;
- (xvii) “division concerned” means the division to which business of this Act stands allocated;
- (xviii) “faculty” means an administrative and academic unit of the University consisting of one or more departments, as may be prescribed;
- (xix) “FGEI (C/G) Directorate” means Federal Government Educational Institutions (Cantonments and Garrisons) Directorate or by whatever name called;
- (xx) “Government” means the Federal Government;
- (xxi) “institute” means an institute maintained and administered by the University;
- (xxii) “prescribed” means prescribed by statutes, regulations or rules made under this Act;
- (xxiii) “principal” means the head of a constituent or affiliated college or by whatever name called;
- (xxiv) “Pro-Chancellor” means Pro-Chancellor of the University;
- (xxv) “Pro-Rector” means Pro-Rector of the University;
- (xxvi) “Representation Committee” means the Representation Committee constituted under section 32;
- (xxvii) “Rector” means the Rector of the University;
- (xxviii) “registered graduate” means a graduate of the University whose name has been entered in the register maintained for this purpose;

- (xxix) “Registrar” means Registrar of the University;
- (xxx) “Review Panel” means the Review Panel constituted by the Chancellor or the Chairman in accordance with the provisions of this Act;
- (xxxi) “Schedule” means a Schedule to this Act;
- (xxxii) “Search Committee” means the Search Committee constituted by the Board under this Act;
- (xxxiii) “statutes”, “regulations” and “rules” mean respectively the statutes, regulations and rules made or deemed to have been made under this Act and for the time being in force;
- (xxxiv) “sub-campus” means a sub-campus of the University;
- (xxxv) “Syndicate” means the Syndicate of the University;
- (xxxvi) “teachers” include professors, associate professors, assistant professors and lecturers engaged in whole-time by the University or by a constituent or affiliated college and such other persons as may by regulations be declared to be teachers;
- (xxxvii) “Treasurer” means Treasurer of the University;
- (xxxviii) “University” means the National University of Pakistan (NUP) established under this Act; and
- (xxxix) “University teacher” means a whole-time teacher appointed and paid by the University, or recognized by the University as such.

CHAPTER-II

THE UNIVERSITY CODE

3. Establishment of the University.—(1) On commencement and in accordance with the provisions of this Act, there stands established a University to be called the National University of Pakistan.

(2) The principal seat of the University shall be at Islamabad and it may set up its campuses in Pakistan and abroad as the Board may deem fit.

(3) The University shall be a body corporate having perpetual succession and a common seal with powers, subject to the provisions of this Act, to acquire, transfer, hold and dispose of movable or immovable property and shall, by the said name, sue and be sued.

(4) Notwithstanding anything contained in any other law for the time being in force, the University shall have academic, financial and administrative autonomy, including the power to employ officers, teachers and other employees on such terms and conditions as may be prescribed, subject to the provisions of this Act and rules, regulation and policies prescribed under the Higher

Education Commission Ordinance, 2002 (LIII of 2002). In particular, and without prejudice to the authority granted to the Commission by the law, the Government or an authority or auditor appointed by the Government shall have no power to question the policy underlying the allocation of resources approved by the Board in 'the annual budget of the University.

(5) The existing degree colleges operating under umbrella of FGEI (C/G) Directorate across Pakistan and their degree programmes shall stand affiliated with the University, subject to fulfilment of all legal and codal formalities, as may be prescribed.

4. Powers and functions of the University.—The University shall have the powers and functions to—

- (i) provide for education in natural and applied sciences, engineering, management sciences, computing, social sciences, humanities and arts, emerging technologies, and other such branches of knowledge as it may deem fit, and make provisions for research, service to the society and for the application, advancement, and dissemination of knowledge in such manner as it may determine;
- (ii) provide for education and scholarship, and make provision for research, service to society and for the application, advancement, and dissemination of knowledge;
- (iii) prescribe courses of studies that are conducted, hold examinations and award, confer degrees, diplomas, certificates, and other academic distinctions in respect of students and persons who have been admitted to and have passed its examinations under prescribed conditions;
- (iv) decide innovative teaching methods and strategies to ensure the most effective educational and training programmes meeting international standards;
- (v) hold examinations in prescribed manner as per international standards and, if a person qualifies the examination, award him the required degrees, diplomas, certificates and other academic distinctions;
- (vi) prescribe the terms and conditions of employment of the officers, teachers and other employees of the University and lay down terms and conditions that may be different from those applicable to government servants in general;
- (vii) engage, where necessary, persons on contract for specified duration and specify the terms of each engagement;
- (viii) confer honorary degrees or other distinctions on approved persons in the prescribed manner;
- (ix) maintain linkages with alumni;
- (x) provide and support academic development of the faculty of the University;
- (xi) confer degree on a person who has successfully conducted research in the

prescribed manner;

- (xii) institute professorship, associate professorship, assistant professorship and lectureship or any other post and may appoint a person to the post);
- (xiii) create a post for research, extension, administration or other related purposes and appoint a person to the post;
- (xiv) provide for the residence of the students, establish and maintain halls of residence and may approve or license a hostel, lodging or boarding place;
- (xv) demand and receive such fees and other charges as it may determine;
- (xvi) provide instruction for persons not being students of the University as may be prescribed and grant certificates and diplomas to such persons;
- (xvii) provide career counseling and job search services to students and alumni;
- (xviii) institute and award financial assistance to students in need, fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;
- (xix) establish teaching departments, schools, colleges, faculties, institutes, museums and other centers of learning, or by whatever name called, for development of teaching and research and to make such arrangements for their maintenance, management and administration as may be prescribed;
- (xx) maintain order, discipline and security at the campuses of the University and the constituent colleges;
- (xxi) promote extra-curricular and recreational activities for students and make arrangements for promoting their health and general welfare;
- (xxii) provide any other prescribed or ancillary service;
- (xxiii) institute programs for exchange of students and teachers between the University and any other university, educational institute or research organization;
- (xxiv) develop and implement fund-raising plans;
- (xxv) accept an examination and the period of study spent by a student of the University at any other university or place of learning equivalent to an examination or period of study of the University and may withdraw such acceptance;
- (xxvi) cooperate with a public authority, university or private organization in the prescribed manner;
- (xxvii) collaborate with foreign partners in developing degree programs and promote linkages;

- (xxviii) make provision for research, advisory or consultancy services and enter into arrangements with any other institute, public or private body, commercial or industrial enterprise in the prescribed manner;
- (xxix) develop an associated technology park of international standard;
- (xxx) develop research commercialization and intellectual property policy for promotion of commissioned research, spin off companies and incubators;
- (xxxi) develop a research fund for faculty research and innovation, managed independently in line with international funding agencies;
- (xxxii) receive and manage property transferred and grants, contributions made to the University and to invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions in such manner as it may deem fit;
- (xxxiii) enter into, carry out, vary or cancel contracts;
- (xxxiv) provide for printing and publication of research and other works;
- (xxxv) admit any college or other educational institute to its privileges or withdraw such privileges in the prescribed manner;
- (xxxvi) affiliate or disaffiliate a college or other educational institute in the prescribed manner;
- (xxxvii) inspect colleges and other educational institutes affiliated or seeking affiliation with it; and
- (xxxviii) exercise any power ancillary to the above powers or as may be prescribed.

5. University to be open to all classes and creeds.—The University shall be open to all persons irrespective of gender, religion, race, domicile, creed, class or colour and no person shall be denied the privileges of the University on any such ground.

6. Fee and other Charges.—(1) An increase in any fee or charge that is in excess of ten percent per annum on an annualized basis from the last such increase may not be made except in special circumstances and only with approval of the Board.

(2) The University shall institute financial aid programmes for students in need, to the extent considered feasible by the Board in the available resources, to enable admission and access to the University and the various opportunities provided by it to be based on merit rather than ability to pay.

CHAPTER-III

OFFICERS OF THE UNIVERSITY

7. Officers of the University.—In addition to the dignitaries, that is to say, the Chancellor

and the Pro-Chancellor, the following shall be the principal officers of the University, namely: —

- (a) Chairman;
- (b) Rector;
- (c) Pro-Rectors;
- (d) Deans;
- (e) Chairpersons or heads of departments;
- (f) Controller of Examinations;
- (g) Director, Planning and Development (P&D);
- (h) Director, Quality Enhancement Cell (QEC);
- (i) Director, Students Affairs;
- (j) Director, Office of Research, Innovation and Commercialization (ORIC);
- (k) Internal Auditor;
- (l) Treasurer;
- (m) Registrar; and
- (n) such other persons as may be prescribed.

8. Chancellor.—(1) The President of the Islamic Republic of Pakistan shall be the Chancellor of the University and shall, when present, preside the convocation of the University.

(2) The members of the Board shall be appointed by the Chancellor from amongst the persons recommended by the Representation Committee constituted for this purpose in accordance with this Act and the statutes, as the case may be.

(3) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

(4) If the Chancellor is satisfied that serious irregularity or mis-management with respect to affairs of the University has occurred, he may,

- (a) as regards proceedings of the Board, direct that specified proceedings be re-considered and appropriate action taken within one month of the direction having been issued:

Provided that if the Chancellor is satisfied that either no re-consideration has been carried out or that the re-consideration has failed to address the concern expressed, the Chancellor may, after calling upon the Board to show cause in writing, appoint a Review Panel to examine and report to the Chancellor on the functioning of the Board; and

- (b) as regards proceedings of any Authority or with respect to matters within the competence of any Authority, other than the Board, direct the Board to exercise powers under this Act.

9. Pro-Chancellor.—(1) The Minister in-charge of the division to which business of education stands allocated shall be the Pro-Chancellor of the University.

(2) In case of non-availability of Chancellor, the Pro-Chancellor shall preside the convocation of the University.

10. Chairman.—(1) The Chief of the Army Staff (COAS) or his nominee shall be the *ex-officio* Chairman of the Board and shall preside over meetings of the Board.

(2) If the Chairman is satisfied that serious irregularity or mis-management with respect to affairs of the University has occurred, he may,—

- (a) as regards proceedings of the Board, direct that specified proceedings be re-considered and appropriate action be taken within one month of the direction having been issued:

Provided that if the Chairman is satisfied that either no re-consideration has been carried out or that the re-consideration has failed to address the concern expressed, he may, after calling upon the Board to show cause in writing, appoint a five-member Review Panel to examine and report to the Chairman on the functioning of the Board. The report of the Review Panel shall be submitted within such time as may be specified by the Chairman. The Review Panel shall be drawn from persons of eminence in “academics and in the fields of law, accountancy and administration; and

- (b) as regards proceedings of any Authority or with respect to matters within the competence of any Authority, other than the Board, direct the Board to exercise powers under this Act.

11. Removal from the Board.—(1) The Chairman may, upon recommendation of the Review Panel, remove any person from the membership of the Board on the ground that such person—

- (a) has been, by a court of law, declared as of un-sound mind;
- (b) has become in-capacitated to function as member of the Board;
- (c) has been, by a court of law, convicted for an offence involving moral turpitude;
- (d) has absented himself from two consecutive meetings without just cause;
- (e) has been guilty of misconduct, including use of position for personal advantage of any kind, or gross in-efficiency in the performance of his functions; or

- (f) has been, by a court of law, declared as un-discharged insolvent or his application for this purpose is pending adjudication.

(2) The Chairman shall remove any person from the membership of the Board on a resolution calling for the removal of such person supported by at least three-fourths of the members of the Board:

Provided that before passing such resolution, the Board shall provide the member concerned a fair hearing:

Provided further that the provisions of this section shall not be applicable to the Rector in his capacity as a member of the Board.

12. Rector.—The Rector shall be appointed by the Chairman on recommendations made by the Board.

(2) An eminent scholar or distinguished administrator with repute of educational management and leadership shall be appointed as Rector on such terms and conditions as may be prescribed.

(3) The incumbent Director General FGEI (C/G) Directorate shall, on commencement of this Act, stand appointed Rector of the University so long as he holds the office of DG FGEI (C/G) Directorate till the appointment of a regular Rector of the University.

(4) A search committee for the recommendation of persons suitable for appointment as Rector shall be constituted by the Board on the date and in the manner prescribed by statutes and shall consist of two eminent members of society nominated by the Chairman, of whom one shall be appointed the convener, two members of the Board, two distinguished University teachers who are not members of the Board and one member of academic eminence not employed by the University. The two distinguished University teachers shall be selected by the Board through a process, to be prescribed by statutes that provides for the recommendation of suitable names by the University teachers in general. The search committee shall remain in existence till such time the appointment of the next Rector has been made by the Chairman.

(5) The persons proposed by the search committee for appointment as Rector shall recommend a panel of three persons, in order of priority for appointment as Rector by the Chairman:

Provided that the Chairman may decline to appoint any of the three persons recommended and seek recommendation for a fresh panel. In the event of a fresh recommendation being sought by the Chairman, the search committee shall make a proposal to the Board in the prescribed manner.

(6) The Rector shall be appointed for renewable terms of four years on such terms and conditions as may be prescribed by statutes. The term of an incumbent Rector may be renewed by the Chairman, on receipt of a resolution of the Board in support of such renewal:

Provided that the Chairman may call upon the Board to re-consider such resolution once.

(7) The Board may, pursuant to a resolution in this behalf passed by three-fourths of its membership, recommend to the Chairman the removal of the Rector on the ground of in-efficiency, moral turpitude or physical or mental incapacity or gross misconduct, including misuse of position for personal advantage of any kind:

Provided that the Chairman may make a reference to the Board stating the instances of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct on part of the Rector that have come to his notice. After consideration of the reference, the Board may, pursuant to a resolution in this behalf passed by two-thirds of its membership, recommend removal of the Rector:

Provided further that prior to a resolution for removal of the Rector being voted upon, the Rector shall be given an opportunity of being heard.

(8) A resolution recommending removal of the Rector shall be submitted to the Chairman forthwith. The Chairman may accept the recommendation and order removal of the Rector or return the recommendation to the Board,

(9) At any time when the office of the Rector is vacant, or the Rector is absent or is unable to perform the functions of his office due to illness or some other cause, the Chairman shall make such arrangements for performance of the duties of the Rector as he may deem fit.

13. Powers of the Rector.—(1) The Rector shall be the chief executive officer of the University responsible for all administrative and academic functions of the University and for ensuring that the provisions of this Act, statutes, regulations and rules are faithfully observed to promote general efficiency and good order of the University. The Rector shall have all powers prescribed for this purpose, including administrative control over the officers, teachers and other employees of the University.

(2) The Rector shall, if present, be entitled to attend any meeting of any Authority or body of the University.

(3) The Rector may, in an emergency that in his opinion requires immediate action ordinarily not in the competence of the Rector, take as he thinks fit such action and forward, within seventy-two hours, a report of the action taken to the members of the emergency committee of the Board, to be constituted by statutes. The emergency committee may direct such further action as is considered appropriate.

(4) Subject to the general supervision and control of the Syndicate, the Rector may—

- (a) direct a teacher, officer or other employee of the University to take up such assignment in connection with examination, administration or any other activity in relation to the University;
- (b) sanction by re-appropriation an amount not exceeding an amount prescribed by the Board for an un-foreseen item not provided for in the budget and report it to the Board at the next meeting;
- (c) make appointments of such categories of employees of the University and in such manner as may be prescribed;
- (d) take disciplinary action against a teacher, officer or any other employee of the University in the prescribed manner;
- (e) delegate, subject to such conditions as may be prescribed, any of his powers to

a teacher or officer of the University; and

(f) exercise such other powers may be rescribed.

(5) The Rector shall prepare an annual report containing information as regards the preceding academic year including disclosure of all relevant facts pertaining to academics, research, administration and finances of the University.

(6) The Rector shall, within three months of the end of an academic year, submit the annual report of the University before the Board.

(7) The Rector's annual report under this section shall be made available, prior to its presentation before the Board, to all officers and University teachers and shall be published in such numbers as are required to ensure its wide circulation.

14. Pro-Rectors.—(1) The Board may appoint the Pro-Rectors, as may be necessary to carry out functions of the University, for a renewable term as may be prescribed.

(2) The Board, Syndicate or Rector may assign any other functions to the Pro-Rector in addition to his own duties.

(3) The Board may, on recommendations and advice of the Rector, remove the Pro-Rector on grounds of in-efficiency or misconduct in accordance with the prescribed procedure.

(4) The minimum qualifications and experience necessary for appointment to the post of the Pro-Rector shall be such as may be prescribed.

15. Registrar.—(1) There shall be a Registrar of the University to be appointed by the Board on recommendation of the selection board, on such terms and conditions as may be prescribed.

(2) For appointment to the post of Registrar, the minimum experience as well as professional and educational qualifications shall be such as may be prescribed.

(3) The Registrar shall be a full-time officer of the University and shall—

- (a) be administrative head of secretariat of the University and responsible for provision of secretarial support to the Authorities;
- (b) be custodian of the common seal and academic records of the University;
- (c) maintain a register of registered graduates in the prescribed manner;
- (d) supervise the process of election, appointment or nomination of members to the various Authorities and other bodies in the prescribed manner; and
- (e) perform such other duties as may be prescribed.

(4) The Registrar shall hold office for renewable terms of three years.

(5) The Board may, on recommendations and advice of the Rector, remove the Registrar on

grounds of in-efficiency or misconduct in accordance with prescribed manner.

16. Controller of Examinations.—(1) There shall be a Controller of Examinations, to be appointed by the Board on recommendation of the selection board, on such terms and conditions as may be prescribed.

(2) The minimum experience and qualifications necessary for appointment to the post of the Controller of Examinations shall be such as may be prescribed.

(3) The Controller of Examinations shall be a full-time officer of the University responsible for all matters connected with the conduct of examinations and shall perform such other duties as may be prescribed.

(4) The Controller of Examinations shall hold office for renewable terms of three years.

(5) The Board may, on advice of the Rector, remove the Controller of Examinations on grounds of in-efficiency or misconduct in accordance with prescribed manner.

17. Treasurer.—(1) There shall be a Treasurer of the University to be appointed by the Board on recommendations of the selection board or by deputation from any Government organization, on such terms and conditions, as may be prescribed.

(2) The minimum experience and the professional and academic qualifications necessary for appointment to the post of the Treasurer shall be such as may be prescribed.

(3) The Treasurer shall be the chief financial officer of the University and shall—

- (a) manage the assets, liabilities, receipts, expenditures, funds and investments of the University;
- (b) prepare annual and revised budget estimates of the University and present them to the Syndicate or a committee thereof for approval and incorporation in the budget to be presented to the Board;
- (c) ensure that the funds of the University are expended on the purposes for which they are provided;
- (d) have the accounts of the University audited annually to be available for submission to the Board within six months of the close of the financial year, and
- (e) perform such other duties as may be prescribed.

(4) The Treasurer shall hold office for renewable terms of three years.

(5) The Board may, on recommendations and advice of the Rector, remove the Treasurer on grounds of inefficiency or misconduct in accordance with prescribed procedure.

18. Director, planning and development.—(1) There shall be a Director, planning and development (P&D) of the University to be appointed by the Board on recommendation of the selection board on such terms and conditions as may be prescribed.

(2) The minimum experience as well as the professional and academic qualifications necessary for appointment to the post of Director (P&D) shall be such as may be prescribed.

(3) The Director (P&D) shall be a full-time officer of the University and responsible for all matters connected with planning and development and shall perform such other duties as may be prescribed.

(4) The Director (P&D) shall—

- (a) prepare short and long term plans and development programs to meet vision, goals and priorities set by the University management and Board;
- (b) conduct comprehensive review, assessment and analysis of development planning process (project identification, appraisal, selection, implementation and monitoring) and mechanism;
- (c) develop a strategy for improving development planning processes and mechanisms based on findings of the situation analysis;
- (d) provide technical support in developing project proposals for the University;
- (e) be responsible for preparation of PC-1, PC-II, PC-III, PC-IV and PC-V of projects;
- (f) be responsible in respect of projects for preparation of cash work and activity plan;
- (g) be responsible in respect of projects for preparation of quarterly expenditure statements;
- (h) be responsible for preparation of monthly and quarterly progress reports;
- (i) coordinate with works, purchase, store units and accounts; and
- (j) communicate and submit reports, plans and projects to different donors.

(4) The Director (P&D) shall hold office for renewable terms of three years.

(5) The Board may, on recommendations and advice of the Rector, remove the Director (P&D) on grounds of inefficiency or misconduct in accordance with the prescribed procedure.

19. Director, students affairs.—(1) There shall be a Director, students affairs of the University to be appointed by the Board on recommendation of selection board on such terms and conditions as may be prescribed.

(2) The minimum experience as well as the professional and academic qualifications necessary for appointment to the post of Director, students affairs shall be such as may be prescribed.

(3) The Director, students affairs shall be a full-time officer of the University and shall—

- (a) be in-charge of the office of students affairs and alumni (OSAA) and shall maintain discipline of students in the University;
- (b) be in-charge of the office of international and national linkages (OINL), which would include the management of international faculty, international students, faculty exchange, student exchange and execution of international as well as national memorandum of understanding (MoU) by Rector or such other Authority as may be prescribed;
- (c) be the member and secretary of the University discipline committee;
- (d) be the head of career counseling, placements, internships office;
- (e) be the head of financial aid office;
- (f) be responsible to play an active and leading role in overall learning, revisions on curriculum and co-curricular activities of the University students;
- (g) be responsible of learning management system of the University; and
- (h) be responsible to propose plans for the future needs of hostels, logistics for students and staff members.

(4) The Director, students affairs shall hold office for renewable terms of three years.

(5) The Board may, on recommendations and advice of the Rector, remove the Director, students affairs on grounds of inefficiency or misconduct in accordance with the prescribed procedure.

20. Director, quality enhancement cell.—(1) There shall be a Director, quality enhancement cell (QEC) of the University to be appointed by the Board on recommendation of selection board on such terms and conditions as may be prescribed.

(2) The minimum experience as well as the professional and academic qualifications necessary for appointment to the post of Director (QEC) shall be such as may be prescribed.

(3) The Director (QEC) shall be a full-time officer of the University, responsible to—

- (a) review quality standards and quality of teaching and learning in each subject area;
- (b) review academic affiliations with other institutes in terms of effective management of standards and quality of programs;
- (c) define clear and explicit standards as points of reference to the review to be carried out. He should also help the employees to know as to what they could expect from candidates;
- (d) develop qualifications framework by setting out attributes and abilities that can be expected from the holder of a qualification, i.e. undergraduate and graduate programs;

- (e) develop program specifications. These are standards set of information clarifying what knowledge, understanding, skills and other attributes a student will have to develop on successfully completing a specific program;
- (f) develop quality assurance processes and methods of evaluation to affirm that the quality of provision and the standard of awards are being maintained and to foster curriculum, subject and staff development together with research and other scholarly activities;
- (g) ensure that the University's quality assurance procedures are designed to fit in with the arrangements in place nationally and internationally for maintaining and improving the quality of higher education; and
- (h) develop procedures and processes, monitoring and evaluation systems and standards for the following, namely:—
 - (i) approval of new program;
 - (ii) annual monitoring and evaluation including program monitoring, faculty monitoring and student perceptions;
 - (iii) departmental review;
 - (iv) student feedback;
 - (v) employer feedback;
 - (vi) quality assurance of undergraduate, graduate, postgraduate and doctoral programs;
 - (vii) institutional assessment and performance evaluation;
 - (viii) program specifications; and
 - (ix) qualification framework.

(4) The Director (QEC) shall be member of all statutory bodies and committees of the University.

(5) The Director (QEC) shall, hold office for renewable terms of three years.

(6) The Board may, on recommendations and advice of Rector, remove the Director (QEC) on grounds of inefficiency or misconduct in accordance with the prescribed procedure.

21. Director, office of research, innovation and commercialization. — (1) There shall be a Director office of research, innovation and commercialization (ORIC) of the University to be appointed by the Board on recommendation of selection board on such terms and conditions as may be prescribed.

(2) The minimum experience as well as the professional and academic qualifications necessary for appointment to the post of Director (ORIC), shall be such as may be prescribed.

(3) The Director (ORIC) shall be a full-time officer of the University and shall—

- (a) manage and enhance research activities of the University, develop research policies and priorities work for fund raising for research, mobilize faculty, business community and industry for research commercialization and serve as an effective advocate for research with the University and to its broader community of stakeholders and supporters;
- (b) supervise all aspects of the operation of the office for research including research administration (budgeting, auditing, accounting human resources, management and maintenance of facilities and equipment, implementation of research contracts and human resources);
- (c) develop programs and activities that will increase funding for research from all public and private sources, establish and maintain excellent relationships with donors and private sources, oversee proposals for development and submission thereof;
- (d) promote development of public-private partnerships in support of University research, link the University's research community with needs and priorities of corporate sector, develop opportunities for applied search and explore opportunities for technology transfer and commercialization of University research, including incubators and research parks;
- (e) be responsible to monetize royalty streams from licences;
- (f) collaborate with principal liaison for technical marking and licensing on commercialization of the University's intellectual property (IP) in coordination with other relevant departments and offices; and
- (g) work in close liaison with the office of research and development, planning and development and University's technology park.

(4) The Director (ORIC) shall hold office for renewable terms of three years.

(5) The Board may, on recommendations and advice of the Rector, remove the Director (ORIC) on grounds of inefficiency or misconduct in accordance with the prescribed procedure.

22. Internal Auditor.—(1) The Internal Auditor of the University shall be appointed on regular basis by the Board on recommendation of the selection board or by deputation from offices of Auditor General of Pakistan or Controller General of Accounts who fulfil the eligibility criteria to be appointed as Internal Auditor.

(2) The minimum experience as well as the professional and academic qualifications necessary for appointment to the post of Internal Auditor shall be such as may be prescribed.

(3) The Internal Auditor shall be responsible for pre-auditing of all bills and documents for all payments to be made by the University.

(4) The Board may, on recommendation and advice of the Rector, remove the Internal Auditor on grounds of inefficiency or misconduct in accordance with the prescribed procedure.

23. Other officers.—Subject to the provisions of this Act, the eligibility criteria, terms and conditions of the service and the powers and duties of other officers of the University shall be such as may be prescribed.

CHAPTER-IV

AUTHORITIES OF THE UNIVERSITY

24. Authorities.—(1) The following shall be the Authorities of the University established by this Act, namely:—

- (a) the Board;
- (b) the Syndicate;
- (c) the Academic Council;
- (d) Search Committee for appointment of the Rector;
- (e) the Representation Committees for appointment to the Board, Syndicate and the Academic Council;
- (f) boards of faculties;
- (g) board of advanced studies and research;
- (h) finance and planning committee; and
- (i) selection board.

(2) The following shall be the Authorities of the University to be established by statutes, namely:—

- (a) Graduate and Research Management Council;
- (b) Recruitment, Development, Evaluation and Promotion Committees for teachers and other Staff whether at the level of the department, the faculty or the University;
- (c) Career Placement and Internship Committee of each faculty;
- (d) Departmental Council; and
- (e) any other Authority as may be prescribed.

(3) The Board, the Syndicate and the Academic Council may constitute such other committees or sub-committee, by whatever name described, as are considered desirable through statutes or regulations and such committees or sub- committees shall be Authorities of the University for the purposes of this Act.

25. The Board.—(1) The body responsible for the governance of the University shall be the

Board constituted under this Act and shall consist of the following, namely:-

- (a) Chief of Army Staff (COAS) or his nominee; *Chairman*
- (b) secretary of the division to which business of defence stands allocated or his nominee not below the rank of additional secretary or equivalent; *Member*
- (c) secretary of the division to which business of education and professional training stands allocated or his nominee not below the rank of additional secretary or equivalent; *Member*
- (d) secretary of the division to which business of finance stands allocated or his nominee not below the rank of additional secretary or equivalent; *Member*
- (e) Chairman, Higher Education Commission, or his nominee not below the rank of an officer of BPS-20; *Member*
- (f) Rector of the University; *Member*
- (g) Inspector General Training and Evaluation (IGT&E), GHQ or his nominee; *Member*
- (h) Director General, Federal Government Educational Institutions(Cantonments and Garrisons)Directorate; *Member*
- (i) President, Federation of Pakistan Chamber of Commerce and Industry (FPCCI) or his nominee; *Member*
- (j) four persons from society at large, preferably at least one female, being persons of distinction in the fields of administration, management, education, academics, law, accountancy, medicine, fine arts, architecture, agriculture, science, technology, industry, and engineering such that the appointment of these persons reflects a balance across the various fields: *Members*

Provided that special focus or affiliation of the University, to be declared in the prescribed manner, may be reflected in the number of Persons of distinction in the area of expertise relevant to the University who are appointed to the Board;

- (k) One person from amongst the alumni of the University; *Member*
- (l) two persons from the academic community of the country, other than an employee of the University, at the level of professor or principal of a college; and *Members*
- (m) four University teachers, one from each tier *i.e.* professor, associate professor, assistant professor and lecturer. *Members*

(2) The number of members of the Board described against clauses (k) to (m) of sub-section (1) may be increased by the Board through statutes subject to the condition that total membership of the Board does not exceed twenty-one, with a maximum of five University teachers, and the increase is balanced, to the extent possible, across different categories specified in sub-section (1).

(3) Appointments to the Board as mentioned in clauses (k), (l) and (m) of sub-section (1) shall be made from amongst a panel of three names for each vacancy recommended by the Representation Committee constituted in terms of section 32 and in accordance with the procedure as may be prescribed:

Provided that effort shall be made, without compromising on quality or qualification, to give fair representation to women on the Board:

Provided further that in respect of the University teachers described in clause (m) of sub-section (1), the Board shall prescribe a procedure for appointment from the various categories of University teachers.

(4) The members appointed to the Board under clauses (j), (k), (l) and (m) of sub-section (1) shall not serve for two consecutive terms.

(5) The Board shall meet at least twice in a calendar year. The special meeting of the Board may be convened by the Chairman when expedient and necessary.

(6) Service on the Board shall be on honorary basis, however, the actual expenses may be reimbursed, as may be prescribed.

(7) The Registrar shall be the secretary of the Board.

(8) Unless otherwise prescribed by this Act, all decisions of the Board shall be taken based on the opinion of a majority of the members present. In the event of the members being evenly divided on any matter, the person presiding over the meeting shall have a casting vote.

(9) The quorum for a meeting of the Board shall be two-third of its total membership, a fraction being counted as one.

26. Powers and functions of the Board.—(1) The Board shall have power of general supervision of the University and shall hold the Rector and the Authorities accountable for all functions of the University. The Board shall have all powers of the University not expressly vested in an Authority or officer by this Act and all other power not expressly mentioned by this Act that are necessary for the performance of its functions.

(2) Without prejudice to the generality of the foregoing powers, the Board shall have the powers to—

- (a) approve the proposed annual plan of work, the annual and revised budgets, the annual report and the annual statement of accounts;
- (b) hold, control and lay down policy for administration of property, funds and investments of that University, including approval of sale and purchase or acquisition of immovable property;

- (c) approve appointment of the Deans as may be prescribed;
- (d) institute schemes, directions and guidelines for terms and conditions of appointment of all officers, teachers and other employees of the University;
- (e) approve strategic plans;
- (f) approve financial resource development plans of the University;
- (g) consider drafts of statutes and regulations proposed by the Syndicate and the Academic Council and deal with them in the manner as provided for in sections 33 and 34, as the case may be:

Provided that the Board may frame a statute or regulation on its own initiative and approve it after calling for advice of the Syndicate or the Academic Council, as the case may be;

- (h) annul by order in writing proceedings of any Authority or officer if the Board is satisfied that such proceedings are not in accordance with the provisions of this Act, statutes or regulations made thereunder after calling upon such Authority or officer to show cause as to why such proceedings should not be annulled;
- (i) recommend to the Chancellor removal of any member of the Board in accordance with the provisions of this Act;
- (j) make appointment of members of the Syndicate, other than *ex-officio* members, in accordance with the provisions of this Act;
- (k) make appointment of members of the Academic Council, other than *ex-officio* members, in accordance with the provisions of this Act;
- (l) appoint emeritus professors on such terms and conditions as may be prescribed;
- (m) remove any person from membership of any Authority, if such person—
 - (i) has been, by a competent court of law, declared as of unsound mind;
 - (ii) has become incapacitated mentally or physically to function as member of such Authority;
 - (iii) has been, by a court of law, convicted for an offence involving moral turpitude; or
 - (iv) has been, by a court of law, declared as undischarged insolvent or his application for this purpose is pending adjudication;
- (n) determine the form, provide for the custody and regulate the use of the

common seal of the University.

(3) The Board may, subject to the provisions of this Act, delegate all or any of the powers and functions of any Authority, officer or employee of the University at its main campus, to any Authority, committee, officer or employee at its additional or sub-campus for the purpose of exercising such powers and performing such functions in relation to such additional or sub-campus, and for this purpose the Board may create new posts or positions.

27. Visitation.—The Board may, in accordance with the terms and procedures, as may be prescribed, cause an inspection to be made in respect of any matter connected with the University.

28. The Syndicate.—(1) The Syndicate shall consist of the following, namely:—

- (a) the Rector who shall be its Chairperson;
- (b) the Pro-Rector;
- (c) the Deans of the faculties of the University;
- (d) two persons of eminence (including on female not serving in any educational institute) to be nominated by the Board;
- (e) nominee of the Higher Education Commission not below the rank of an officer in BPS-19;
- (f) the Director, FGEI (C/G) Directorate or his nominee not below the rank of an officer in BPS-19;
- (g) three University teachers from different tiers (associate professor, assistant professor and lecturer);
- (h) Principals of the constituent colleges;
- (i) one principal each of the affiliated colleges to be recommended by DG FGEI (C/G) Directorate in a prescribed manner;
- (j) the Director (QEC);
- (k) the Director (ORIC);
- (l) the Director (Students Affairs);
- (m) the Director (P&D);
- (n) the internal Auditor;
- (o) the Treasurer;
- (p) the Controller of Examinations; and

(q) the Registrar who shall be the Secretary of the Syndicate.

(2) Members of the Syndicate, other than *ex-officio* members, shall hold office for a period of three years.

(3) As regards the three professors described in clause (g) of sub-section (1) the Board may prescribe a procedure for proposal of a panel of names by the Representation Committee constituted under section 32. Appointment of persons proposed by the Representation Committee may be made by the Board on recommendation of the Rector.

(4) The quorum for a meeting of the Syndicate shall be one-half of the total number of its members, a fraction being counted as one.

(5) The Syndicate shall meet at least once in each quarter of the year.

29. Powers and functions of the Syndicate.—(1) The Syndicate shall be the executive body of the University and shall take effective measures to raise the standard of teaching, research, technological development, publication and other academic pursuits and shall exercise general supervision and control over affairs of the University and management of property of the University.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act, statutes and directions of the Board, the Syndicate shall have the powers to—

- (a) consider the annual report, the annual and revised budget estimates and to submit these to the Board;
- (b) oversee the quality and relevance of the University's academic programmes and to review the academic affairs of the University in general;
- (c) transfer and accept transfer of movable property on behalf of the University;
- (d) enter into, vary, carry out and rescind contracts on behalf of the University;
- (e) cause proper books of account to be kept for all sums of money received and expended by the University and for the assets and liabilities of the University;
- (f) invest, subject to the provisions of the Public Finance Management Act, 2019, any money belonging to the University including any unapplied income in any of the securities described in sections 32 and 33 of the Islamabad Capital Territory Trust Act, 2020 (XXV of 2020), or in the purchase of immovable property or in such other manner, as it may prescribe, with the like power of varying such investments;
- (g) receive and manage any property, grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University;
- (h) administer any funds placed at the disposal of the University for specified purposes;
- (i) provide and maintain the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the University;
- (j) establish and maintain halls of residence and hostels or approve or license

hostels or lodgings for the residence of students;

- (k) approve affiliation or de-affiliation of colleges as recommended by the Academic Council;
- (l) approve appointment of officers of the University and professors, associate professors, assistant professors, lecturers and such other senior faculty and senior administrators as may be prescribed;
- (m) recommend to the Board admission of educational institutes to the privileges of the University and withdraw such privileges;
- (n) arrange for inspection of colleges and departments;
- (o) institute professorships, associate professorships, assistant professorships, lectureships and other teaching posts or to suspend or to abolish such posts;
- (p) create, re-designate, up-grade, down-grade, suspend or abolish such administrative or other posts as may be necessary;
- (q) prescribe duties of officers, teachers and other employees of the University;
- (r) report to the Board on matters with respect to which it has been asked to report;
- (s) appoint members to various Authorities in accordance with the provisions of this Act;
- (t) propose drafts of statutes for submission to the Board;
- (u) regulate conduct and discipline of students of the University;
- (v) take actions necessary for good administration of the University in general and to this end exercise such powers as are necessary;
- (w) delegate any of its powers to any Authority or officer or a committee; and
- (x) perform such other functions as have been assigned to it by the provisions of this Act or may be assigned to it by statutes.

30. Academic Council.—(1) The Academic Council shall consist of—

- | | | |
|-----|--|--------------------|
| (a) | Rector | <i>Chairperson</i> |
| (b) | Pro-Rector | <i>Member</i> |
| (c) | Deans of faculties and heads of departments as may be prescribed | <i>Members</i> |
| (d) | five members representing the departments, institutes and the constituent colleges to be elected in the manner prescribed by the Board | <i>Member</i> |
| (e) | Director (Students Affairs) | <i>Member</i> |
| (f) | Director (QEC) | <i>Member</i> |

(g)	Director (ORIC)	Member
(h)	Director (P&D)	Member
(i)	two principals of affiliated colleges	Members
(j)	the Controller of Examinations	Member
(k)	the Librarian	Member
(l)	nominee of the Commission	Member
(m)	the Registrar	Secretary

(2) A member of the Academic Council appointed by nomination shall hold office for three years.

(3) The quorum for a meeting of the Academic Council shall be one- third of the total number of its members, a fraction being counted as one.

31. Powers and functions of the Academic Council.—(1) The Academic Council shall be the academic body of the University and may lay down proper standards of instruction, research, publication and examination and to regulate and promote the academic life of the University and affiliated colleges.

(2) In particular and without prejudice to the generality of the foregoing powers, the Academic Council may—

- (a) advise the Syndicate on academic matters;
- (b) recommend to the Syndicate affiliation or de-affiliation of colleges;
- (c) regulate teaching, research and examinations;
- (d) regulate admission of students to the courses of studies and examinations of the University and affiliated colleges;
- (e) regulate award of studentships, scholarships, medals and prizes;
- (f) regulate conduct and discipline of students of the University and affiliated colleges;
- (g) propose to the Syndicate, schemes for constitution and organization of faculties, institutes and other academic bodies;
- (h) propose regulations on recommendations of the boards of faculties and the boards of studies for consideration and approval of the Syndicate;
- (i) propose for each academic year, on recommendations of the boards of studies, regulations prescribing the courses of studies, the syllabi and the outlines of tests for all examinations, provided that, if the recommendations of a board of faculties or the board of studies are not received by the prescribed date, the Academic Council may, subject to approval of the Syndicate, permit such

regulations to continue for the subsequent years;

- (j) recognize the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the University;
- (k) appoint members to the Authorities in accordance with the provisions of this Act and as may be prescribed by statutes; and
- (l) perform such other functions as may be prescribed by statutes.

32. Representation Committee.—(1) There shall be a Representation Committee constituted by the Board through statutes for recommendation of persons for appointment to the Board in accordance with the provisions of section 26 and for the recommendation of persons for appointment to the Syndicate and the Academic Council in accordance with the provisions of sections 28 and 30 respectively.

(2) The Representation Committee responsible to make its recommendations for appointment of members to the Board shall consist of the following, namely:—

- (m) three members of the Board who are not the University teachers;
- (n) two persons nominated by the University teachers from amongst themselves in the prescribed manner;
- (o) one person from the academic community, not employed by the University, at the level of professor or school principal to be nominated by the University teachers in the prescribed manner; and
- (p) one eminent citizen with experience in administration philanthropy, development work, law or accountancy to be nominated by the Board.

(3) The Representation Committee responsible to make its recommendations for appointment of members of the Syndicate and the Academic Council shall consist of the following, namely:—

- (a) two members of the Board who are not University teachers; and
- (b) three persons nominated by the University teachers from amongst themselves in the prescribed manner.

(4) The term of the Representation Committees shall be for a period of three years:

Provided that no member shall serve for more than two consecutive terms.

(5) The procedures of the Representation Committees shall be such as may be prescribed.

(6) There may also be such other Representation Committees constituted by any of the other Authorities of the University as are considered appropriate for recommending persons for appointment to the various Authorities and other bodies of the University.

CHAPTER-V

STATUTES, REGULATIONS AND RULES

33. Statutes.—(1) The Syndicate may prepare statutes, whenever required, consistent with the provisions of this Act and submit the same before the Board for approval.

(2) The statutes may be made to provide for and regulate all or any of the following, namely:—

- (a) scales of pay, method of appointment and other terms and conditions of service of officers, teachers and other employees of the University and the constitution of their pension, insurance, gratuity, provident fund and benevolent fund;
- (b) the contents of and the manner in which the annual report to be presented by the Rector before the Board;
- (c) the institute fees and other charges;
- (d) conduct and discipline of officers, teachers and other employees of the University;
- (e) constitution, powers and duties of the Authorities and prescribe procedure for appointing members to such Authorities and related matters;
- (f) affiliation and disaffiliation of colleges, institutes, etc. and related matters;
- (g) admission of educational institutes to the privileges of the University and the withdrawal of such privileges;
- (h) establishment of institutes, faculties, colleges, departments and academic divisions;
- (i) powers and duties of officers, teachers and employees of the University;
- (j) conditions for appointment of professors emeritus;
- (k) conditions on which the University may enter into arrangements with public bodies or other organizations for purposes of research and advisory services;
- (l) general scheme of studies including the duration of courses, the system of examinations and the number of subjects and papers for examinations;
- (m) award of honorary degrees;
- (n) maintenance of register of students and registered graduates;
- (o) procedure for nomination and membership of Authorities of the University and related matters; and

(p) all other matters which are to be or may be prescribed or regulated by statutes.

(3) The statutes, on approval of the Board, shall be published in the official Gazette.

34. Regulations.—(1) The Academic Council shall prepare the regulations, consistent with the provisions of this Act, in respect of any of the following matters, namely:—

- (a) courses of study for degrees, diplomas and certificates of the University;
- (b) manner and method of teaching conducted in the University and affiliated colleges;
- (c) admission of students to the University and conditions under which they are admitted or allowed to take courses and examinations of the University and become eligible for the award of degrees, diplomas and certificates;
- (d) fees and other charges to be paid by students for admission to the courses of studies and the examinations of the University;
- (e) conduct of examinations;
- (f) conduct and discipline of students of the University;
- (g) conditions of residence of the students of the University or colleges including the levying of fee for residence in halls of residence and hostels and approval of hostels and lodgings for students;
- (h) conditions for acquiring research degrees;
- (i) institution of fellowships, scholarships; medals and prizes;
- (j) institution of stipends and free and half-free studentships;
- (k) academic costumes;
- (l) use of the library;
- (m) formation of teaching departments and boards of studies; and
- (n) all other matters which under this Act or the statutes are to be or may be prescribed by regulations.

(2) The Academic Council shall submit the regulations to the Syndicate for approval.

(3) The regulations, on approval of the Syndicate, shall be published in the official Gazette.

35. Benefits and insurance.—(1) The University shall constitute for the benefit of its officers, teachers and other employees schemes, as may be prescribed, for the provision of post-employment benefits as well as health and life insurance while in service.

(2) Where any provident fund has been constituted under this Act, the provisions of the Provident Funds Act, 1925 (XIX of 1925), shall apply to such funds as if it were the Government Provident Fund.

36. Amendment and repeal of statutes and regulations.—The procedure for adding to, amending or repealing the statutes and regulations shall be the same as that prescribed respectively for making statutes and regulations.

37. Rules.—(1) An Authority or a body of the University may with approval of the Syndicate and by notification in the official Gazette, make rules, consistent with this Act, the statutes and regulations to regulate the conduct of its business.

(2) The Board may direct any Authority or body of the University to amend or repeal any rules made by the Authority or body.

CHAPTER-VI FINANCIAL PROVISIONS

38. University Fund.—(1) There shall be a fund to be known as the University Fund which shall vest in the University and to which shall be credited all sums received by the University, including income from fees, charges, donations, trusts, bequests, endowments, contributions, grants and all other sources.

(2) The University may accept donations in the shape of land, equipment or any other item that may facilitate the functioning of the University and all such donations shall be used, maintained and disposed of by the University in the prescribed manner.

(3) There shall be a research fund of the University, independently managed in line with international research funds. This fund shall support indigenous research by faculty and research students on campus.

39. Budget, accounts and audits.—(1) Subject to the provisions of Articles 169 and 170 of the Constitution, the accounts of the University shall be maintained and audited in such form and in such manner as may be prescribed.

(2) The teaching department, constituent schools, colleges and institutes and all other bodies designated as such by the Syndicate in terms of statutes shall be independent cost centers of the University with authority vested in the head of each cost centre to sanction expenditure out of the budget allocated to it, provided that re-appropriation from one head of account to another may be made by the head of a cost centre in accordance with and to the extent prescribed by statutes.

(3) All funds generated by a teaching department, constituent college, school or other unit of the University through consultancy, research or other provision of service shall be made available without prejudice to the budgetary allocation otherwise made, after deduction of overheads in the manner and to the extent prescribed by statutes, to the teaching department, constituent college, school or other unit for its development. A part of the funds so generated may be shared with the University teachers or re-searchers in charge of the consultancy, research or service concerned in the manner and to the extent prescribed by statutes.

(4) No expenditure shall be made from the funds of the University, unless a bill for its payments has been issued by the head of the cost centre concerned in accordance with the relevant statutes and the Treasurer has verified that the payment is provided for in the approved budget of the cost centre, subject to the power of re-appropriation available to the head of the cost centre.

(5) Provision shall be made for an internal audit of the finances of the University institute and constituent college.

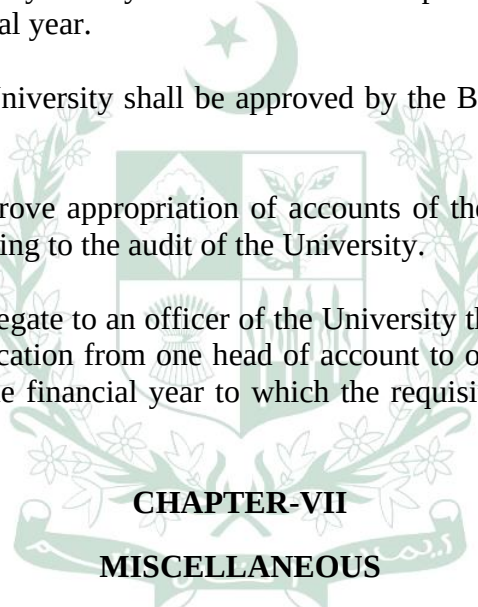
(6) Without prejudice to the requirement of audit by an auditor appointed, the annual audited statement of accounts of the University shall be prepared in conformity with the generally accepted accounting principles (GAAP) by a reputed firm of chartered accountants and signed by the Treasurer.

(7) The observations of the Auditor, if any, together with such annotations as the Treasurer may make shall be considered by the Syndicate and shall be placed before the Board within six months of closing of the financial year.

(8) The budget of the University shall be approved by the Board in such manner as may be prescribed.

(9) The Board may approve appropriation of accounts of the University and settle an audit para or observation, if any, relating to the audit of the University.

(10) The Board may delegate to an officer of the University the power of appropriation or re-appropriation of budgetary allocation from one head of account to other head of account within the existing budget allocation of the financial year to which the requisite proposed expenditures, to be made thereagainst, relates.



CHAPTER-VII

MISCELLANEOUS

40. Appeal to Syndicate and Board.—(1) If an order is passed by an Authority, body or officer of the University, other than the Chancellor or the Board, and an appeal against the order is not provided under the statutes or regulations, any aggrieved person may prefer an appeal against the order to the Syndicate.

(2) The Syndicate may constitute a committee of its members to hear and dispose of any appeal on behalf of the Syndicate.

(3) If a member of the Syndicate is the officer who passed the order or who is also member of the Authority against whose order appeal is filed before the Syndicate, such member shall neither hear the appeal as member of the Syndicate nor be part of the committee constituted to hear and dispose of the appeal.

(4) If aggrieved person is not satisfied with the decision of the Syndicate, he may file an appeal to the Board, whose decision thereon shall be final.

41. Opportunity to show cause.—Except as otherwise provided by law no officer, teacher or other employee of the University holding a permanent post shall be reduced in rank, dismissed or

removed or compulsorily retired from service, for cause arising out of any act or omission on the part of the person concerned unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken.

42. Commencement of term of office of members of Authority.—(1) When a member of a newly constituted Authority is elected, appointed or nominated, his term of office, as fixed under this Act, shall commence from such date as may be prescribed.

(2) Where a member who has accepted any other assignment or for any other similar reason remains absent for a period of not less than six months from the University without any prior notice, he shall be deemed to have resigned and vacated his seat.

43. Filling of casual vacancies in Authorities.—Any casual vacancy among the members of any Authority shall be filled, as soon as conveniently may be, in the same manner and by the same person or Authority that had appointed the member whose place has become vacant and the person appointed to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

44. Service of the University.—(1) All persons employed by the University in accordance with the terms and conditions of service prescribed by statutes shall be persons in the service of Pakistan for the purposes of any court or tribunal constituted by law in terms of Article 212 of the Constitution of the Islamic Republic of Pakistan:

Provided that any provision as regards the terms and conditions of employment of persons in the service of Pakistan in general or in comparable employment notwithstanding the service of persons employed by the University shall be entirely governed by the terms and conditions prescribed by the relevant statutes.

(2) An officer, teacher or other employee of the University shall retire from service on the attainment of such age or tenure of service as may be prescribed.

(3) No adverse change shall be made in the terms and conditions of employment of any University teacher or other employee in the employment of the University on the date of enforcement of this Act.

45. Removal of difficulty.—(1) If any question arises as to the interpretation of any of the provisions of this Act, it shall be placed before the Chancellor whose decision thereon shall be final.

(2) If any difficulty arises in giving effect to any of the provisions of this Act, the Chancellor may make such order after obtaining the views of the Board, not inconsistent with the provisions of this Act, as may appear to him to be necessary for removing the difficulty.

(3) Where this Act makes any provision for anything to be done but no provision or no sufficient provision has been made as respects the Authority by whom, or the time at which, or the manner in which, it shall be done, then it shall be done by such Authority, at such time, or in such manner as the Chancellor may direct after obtaining the views of the Board.

46. First statutes and regulations.—Notwithstanding anything to the contrary contained in this Act, the President of Pakistan shall promulgate the first statutes and regulations which shall be deemed to be statutes and regulations made under sections 33 and 34 respectively and shall continue

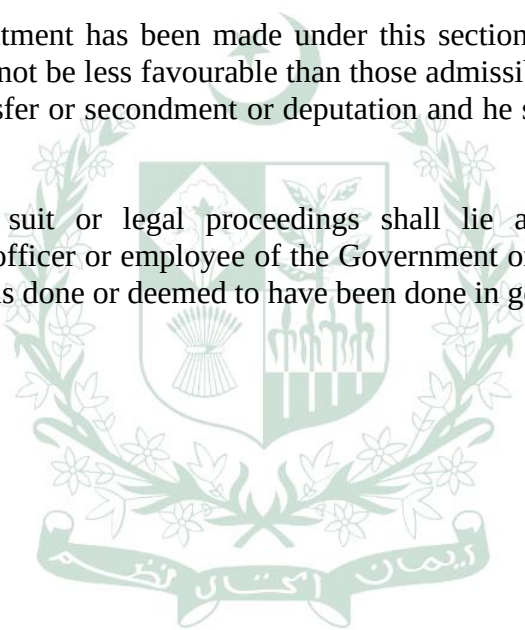
to remain in force until amended or replaced by the President or till such time new statutes and regulations are made in accordance with the provisions of this Act.

47. Proceedings of Authorities not invalidated by vacancies.—No act, resolution or decision of any Authority shall be invalid by reason of any vacancy in the Authority doing, passing or making it or by reason of any want of qualification or invalidity in the appointment or nomination of any member of the authority, whether present or absent.

48. Power to allow appointment of employees of the Government, other universities or educational or research institutes to the University.—(1) Notwithstanding anything contained in this Act, the Board may, on recommendation of the Rector, allow any post in the University to be filled by initial appointment, transfer or secondment or deputation of an employee of the Government or any other university or educational or research institute on such terms and conditions as the Board may specify.

(2) Where any appointment has been made under this section, the terms and conditions of service of the appointee shall not be less favourable than those admissible to him immediately before such initial appointment, transfer or secondment or deputation and he shall be entitled to all benefits of his post or service.

49. Indemnity.—No suit or legal proceedings shall lie against the Government, the University or any Authority, officer or employee of the Government or the University or any person in respect of any thing which is done or deemed to have been done in good faith under this Act,



THE PAKISTAN CODE

SCHEDULE

(See section 2, 33 and 46)

THE FIRST STATUTES

1. Faculties.—(1) There shall be a faculty for a teaching department or a group of teaching departments.

(2) The University shall include the following faculties and such other faculties as may be prescribed, namely:—

- (a) Faculty of Natural and Applied Sciences;
- (b) Faculty of Computing;
- (c) Faculty of Management Sciences;
- (d) Faculty of Social Sciences, Humanities and Arts;
- (e) Faculty of Engineering and Emerging Technologies;
- (f) any other faculty, department or institute with the approval of the Board.

2. Board of faculty.—(1) There shall be a board of faculty for each faculty which shall consist of—

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| (a) | Dean of the faculty; | <i>Chairperson</i> |
| (b) | Professors and the chairpersons of head of departments in the faculty; | <i>Members</i> |
| (c) | the Director (Students Affairs); | <i>Member</i> |
| (d) | the Director (QEC); | <i>Member</i> |
| (e) | two teachers including at-least one women to be nominated by the Academic Council based on their specialized knowledge of the subjects which, though not assigned to the faculty, have in the opinion of the Academic Council, important bearing on the subjects assigned to the faculty; | <i>Members</i> |
| (f) | two experts including at least one woman in the field from outside the University, one each to be appointed by the Board and Syndicate respectively; | <i>Members</i> |
| (g) | one member to be nominated by the Rector; and | <i>Member</i> |
| (h) | the Director (ORIC) | <i>Member</i> |

(2) The members other than *ex-officio* members of a board of faculty shall hold office for a term of three years.

(3) The quorum for a meeting of a board of faculty shall be one-half of the total number of members, a fraction being counted as one.

(4) A board of faculty, subject to the general control of the Syndicate and Academic Council, may—

- (a) co-ordinate the teaching and research work in the subjects assigned to the faculty;
- (b) scrutinize the recommendations of a board of studies comprising a faculty with regard to the appointment of paper setters and examiners for graduate and postgraduate examinations and to forward the panels of suitable paper setters and examiners for each examination to the Rector;
- (c) consider any other academic matter relating to the faculty and to submit its report to the Academic Council;
- (d) prepare a comprehensive annual report regarding the performance of each department, constituent college or institute, comprising the faculty for presentation to the Academic Council; and
- (e) perform such other functions as may be prescribed by statutes.

(5) The Dean shall be appointed by the Board on recommendations of the Rector from amongst the professors of the faculty, and he shall hold office for a period of three years but shall be eligible for re-appointment provided that in a department or constituent college where there are less than three eligible professors, the appointment shall be made from amongst the three senior most professors and associate professors of the department or constituent college.

(6) The Dean shall present candidates for admission to degree, except an honorary degree, courses falling within the purview of the faculty.

(7) The Dean shall have such powers and duties as may be prescribed by the Board on recommendations of the Rector.

3. Board of advanced studies and research—(1) The board of advanced studies and research shall consist of—

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| (a) | Rector; | <i>Chairperson</i> |
| (b) | all the Deans; | <i>Members</i> |
| (c) | Controller of Examinations; | <i>Member</i> |

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|-----|--|-----------------------------|
| (d) | one University Professor from each faculty (other than Dean) to be nominated by the Syndicate; | <i>Member</i> |
| (e) | one member to be nominated by the Rector; | <i>Member</i> |
| (f) | three members, including at least one woman, from the relevant field, research organizations and Government, to be nominated by the Syndicate; | <i>Members</i> |
| (g) | Director (QEC); | <i>Member</i> |
| (h) | Director(ORIC); | <i>Member</i> |
| (i) | Director (Students Affairs); | <i>Member</i> |
| (j) | Director (P&D); and | <i>Member</i> |
| (k) | Registrar. | <i>Member-cum-Secretary</i> |

(2) The term of office of the members of the board of advanced studies and research, other than *ex-officio* members, shall be three years.

(3) The quorum for a meeting of the board of advanced studies and research shall be one-half of the total number of members, a fraction being counted as one.

4. Functions of the board of advanced studies and research. —The board of advanced studies and research (BASR) shall—

- (a) advise an Authority on all matters connected with promotion of advanced studies and research publication in the University;
- (b) consider and report to an Authority with, regard to a research degree of the University;
- (c) propose regulations regarding the award of a research degree;
- (d) appoint supervisors for a postgraduate research student and to approve title and synopses of a thesis or diosertation;
- (e) recommend panels of names of examiners for evaluation of a research examination; and
- (f) perform such other functions as may be prescribed by statutes.

5. Selection board.— (1) The selection board shall consist of—

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| (a) | Rector; | <i>Chairperson</i> |
| (b) | one Vice Chancellor or Rector of a public. | <i>Member</i> |

sector university;

(c)	Dean of the faculty concerned;	<i>Member</i>
(d)	Joint Secretary of the division concerned;	<i>Member</i>
(e)	Chairperson of concerned department;	<i>Member</i>
(f)	one nominee of the Commission;	<i>Member</i>
(g)	one member of the Board of the University to be nominated by the Board;	<i>Member</i>
(h)	one eminent scholar to be nominated by the Syndicate;	<i>Member</i>
(i)	two experts to be nominated by the Syndicate;	<i>Member</i>
(j)	one member of the Syndicate to be nominated by the Syndicate;	<i>Member</i>
(k)	the Director (QEC);	<i>Member</i>
(l)	nominee of FGEI (C/G) Directorate not below the rank of officer of BPS-19; and	<i>Member</i>
(m)	the Registrar	<i>Member-cum-Secretary</i>

(2) The members, other than *ex-officio* members, shall hold office for a term of three years.

(3) Six members including at least one expert shall constitute the quorum for a meeting of the selection board

(4) No member who is a candidate or whose family member is a candidate, for a post to which appointment is to be made, shall take part in the proceedings of the selection board for selection of a candidate on such post.

(5) In selection of candidates for the post of professor or associate professor, the selection board shall co-opt or consult three experts in the subject and in selecting candidates for any other teaching post, two experts in the subject, to be nominated by the Rector from a standing list of experts for each subject approved by the Syndicate.

(6) The Syndicate may approve or revise the standing list of experts of a subject on recommendation of the selection board.

6. Functions of the selection board. — (1) The selection board shall—

- (a) consider the applications and recommend to the Board, the names of suitable candidates for appointment to the positions of professors, associate professors and such other senior faculty and senior administrators as may be prescribed and to the syndicate, the names of suitable candidates for appointment to the positions of assistant professors, lecturers and such other faculty and administrators posts as may be prescribed and recommend suitable salary for

the selected candidate; and

- (b) consider in prescribed manner all cases of promotion or selection of officers of the University and recommend the names of suitable candidates for such promotion or selection to the Board in case of officers of the level of associate professors or above and equivalent or Syndicate in any other case.

(2) The recommendations of the selection board shall be submitted to the Board or as the case may be Syndicate for approval.

7. Selection committee.—(1) There shall be a selection committee for appointments and promotions of staff.

(2) The selection committee shall consist of—

- (a) Registrar who shall be its Convener;
- (b) Additional Registrar or Deputy Registrar;
- (c) representative of the Dean of the faculty concerned not below the rank of officer in BPS-19;
- (d) representative of head of the department concerned not below the rank of officer in BPS-19;
- (e) representative nominated by the Syndicate not below the rank of officer in BPS-19;
- (f) representative to be nominated by the DG FGEI (C/G) Directorate not below the rank of officer in BPS-19;
- (g) the Director (QEC); and
- (h) the Director (P&D).

(3) The Deputy Registrar (Administration) shall be the secretary of the selection committee.

(4) No member who is a candidate or whose family member is a candidate, for a post to which appointment is to be made, shall take part in the proceedings of the selection committee for selection of a candidate on such post.

8. Functions of the selection committee.—(1) The selection committee shall—

- (a) consider, in the prescribed manner, the applications and recommend to the appointing authority, the names of suitable candidates for appointment to the positions of staff and recommend suitable salary for the selected candidates; and
- (b) consider, in the prescribed manner, all cases of promotion or selection of staff of the University and recommend the names of suitable candidates for such promotion.

(2) The recommendations of the selection committee shall be submitted to the Rector for approval.

9. Finance and planning committee.— (1) The finance and planning committee shall consist of—

(a)	Rector;	<i>Chairperson</i>
(b)	all Deans;	<i>Members</i>
(c)	one member of the Board, to be nominated by the Board;	<i>Member</i>
(d)	one member of the Syndicate to be nominated by the Syndicate;	<i>Member</i>
(e)	one member of the Academic Council to be nominated by the Academic Council;	<i>Member</i>
(f)	one representative of FGEI (C/G) Directorate not below the rank of officer of BPS-19;	<i>Member</i>
(g)	Director Planning or any other nominee of the Commission not below the rank of officer of BPS-19;	<i>Member</i>
(h)	nominee of finance division not below the rank of officer of BPS-19;	<i>Member</i>
(i)	nominee of Auditor General not below the rank of officer of BPS-19;	<i>Member</i>
(j)	Registrar of the University;	<i>Member</i>
(k)	Director (P&D) of the University; and	<i>Member</i>
(l)	Treasurer.	<i>Member-cum-Secretary</i>

(2) The term of office of the nominated members shall be three years.

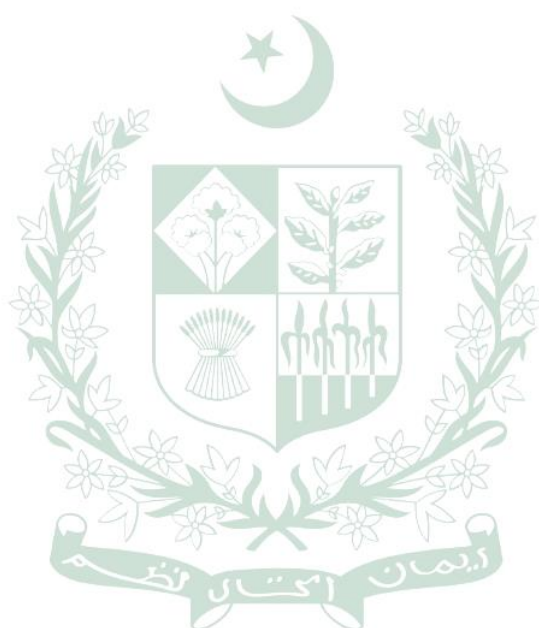
(3) Fifty-one percent members of the finance and planning committee shall constitute the quorum for its meeting, a fraction shall be rounded and counted as one.

10. Functions of the finance and planning committee.—The finance and planning committee shall perform the following functions, namely: —

- (a) prepare the annual statement of accounts and propose annual budget estimates and make recommendations to the Syndicate;
- (b) review periodically the financial position of the University;
- (c) advise the Syndicate on all matters relating to finance, investments

- and accounts of the University; and
- (d) perform such other functions as may be prescribed by statutes.

11. Appointment of committees by Authorities.—Any Authority may constitute such standing, special or advisory committees as it may deem fit, and appoint to such committees persons who may not be members of that Authority.



THE PAKISTAN CODE